

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on December 18, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against FEDEX EXPRESS SPAIN, S.L.U. (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that they were the recipient of a shipment sent from Japan and that, having previously completed the necessary procedures at the Spanish customs to ensure that no importation is processed in their name without express authorization, customs blocked the package, and the transport company FEDEX EXPRESS SPAIN, S.L.U. contacted the complainant urging them to authorize them to carry out the customs procedure on their behalf, without their consent, having used the data of their ID number which they had not provided and which does not appear in the shipment. On November 15, 2023, they sent a request for access to their personal data to the respondent via email sent to addresses ***EMAIL.1 and ***EMAIL.2, expressly requesting information about the source of knowledge of their ID number.

They indicate that on the same date they received two emails, in which the first acknowledged receipt of their request and in the second it was indicated that the provision of a shipment number was necessary to process actions regarding the shipment of which they were the recipient and that the email address to which they sent their request is intended for communications for the management of shipments through customs.

They provide a copy of the shipment documentation, which includes a document in which the respondent uses their personal data against customs; their access request and the automatic responses obtained via email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on March 18, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present the allegations they deemed appropriate, summarizing the following allegations:

"FedEx has a copy of your ID as you had previously provided it in relation to a shipment you received in 2020. This data was provided to FedEx by you, to identify yourself for the customs clearance of your package in 2020. FedEx retained a copy of this information, in accordance with our legal obligations to retain information for specific periods, as indicated below."

FOURTH: Having examined the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate the allegations they consider appropriate, summarizing the following allegations:

"At no time did I provide a copy of my ID to FEDEX as they claim in their document (Otherwise, they

would have provided that copy in their response). Nor did they have any authorization of any kind to retain and use my data in a shipment different from that referred to in the 2020 request.

It therefore seems to be deduced that they have retained and used my personal data for purposes for which they were requested and transferring my data to third parties without my consent and without the support of any law or regulation. In my understanding, this violates several provisions of the current personal data protection regulations.”

FIFTH: Having examined the document submitted by the complainant, it is forwarded to the respondent, so that, within ten working days, they may formulate the allegations they consider appropriate.

The respondent provides numerous explanations of how the complainant provided their ID and includes a privacy notice from FedEx in effect in 2020, which informs interested parties that their identification data will be processed to carry out their parcel shipping services.

SIXTH: Having examined the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate the allegations they consider appropriate.

The complainant continues to insist on the fraudulent use of their data and that the data they provided at that time could only be used for the purpose for which it was requested in 2020.

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